



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10956

FEB - 2 1993 - 2

1. Carmar Associates, Incorporated, Pelzer, South Carolina, is hereby granted an emergency exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a corrosive material for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of six DOT Specification 111A100W2 tank cars, containing residue of sulfuric acid, meeting all requirements except that the tank car tanks are overdue for retest and one tank car has three of eight manway bolts inoperable, and provides no relief from any regulations other than as specifically stated.
2. BASIS. This emergency exemption is based on Carmar Associates, Incorporated's application of December 9, 1992, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary to prevent serious economic loss.
3. HAZARDOUS MATERIALS (Descriptor and class). Sulfuric acid, classed as a corrosive material.
4. PROPER SHIPPING NAME (49 CFR 172.101). Sulfuric acid.
5. REGULATION AFFECTED. 49 CFR 173.29(c)(1) & (2); 173.31(c)(1)
6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight
7. SAFETY CONTROL MEASURES.
 - a. Packagings prescribed are six DOT Specification 111A100W2 tank cars, (GATX 26072, GATX 26074, GATX 26079, GATX 13751, GATX 18492 and GATX 75978) meeting all DOT requirements (49 CFR Parts 100-199), except that the tank car tanks are overdue for retest. Additionally, tank car GATX 26072 has three of eight manway bolts inoperable.
 - b. Tank car GATX 26072 must have the manway chained in a manner which will prevent the release of hazardous materials during transportation.
8. SPECIAL PROVISIONS.
 - a. Tank cars identified in paragraph 7.a. must be marked "DOT-E 10956" in four inch letters on a contrasting background above the DOT specification number.

b. Shipment of the tank cars is authorized between CSX Transportation, Hamlet Yard, Hamlet, North Carolina, and General American Transportation Corporation, Coshockten, Ohio, a distance of approximately 493 miles, via the most direct route available utilizing CSX Transportation, Incorporated.

c. The Federal Railroad Administration is to be notified if any unusual incident, such as a derailment or tank car damage, occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9178 or 366-0549

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

10. EXPIRATION DATE. March 19, 1993.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety

FEB 2 1993

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Program.

Dist: FRA.